



File No.: EXP202208796

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 23, 2022, a complaint was filed with registration number REGAGE22e00036304927 with the Spanish Agency for Data Protection against A.A.A. (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant, who had already filed two other complaints on July 30, is again complaining about the redistribution of the same video on another account of the social network TikTok (**ACCOUNT.1, with 42.6k followers). In the comments to the video (which currently has 499 likes), it is implied that the complainant, without a shirt, has contracted some sexual service with the person who records and disseminates it. He claims to have reported the content to the social network on several occasions, without receiving a response.

No documentation or evidence is provided along with the notification.

SECOND: On August 24, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

Evidence is collected by this Agency of the publication of a video, dated 08/24/2022, at the incomplete url **URL.1.

Another piece of evidence collected by this Agency is the published video where a semi-clothed man can be seen along with his face, and where the TIKTOK logo is also present, the word ****ACCOUNT.1" just below the logo, and the following text within the video itself: "how much fun we had, hope to see you soon bb."

On 08/24/2022, a request is made for the deletion of the content located at the urls:

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**URL.2

**URL.1

On 09/19/2022, a response is received from TIK TOK TECHNOLOGY LIMITED stating that the content is no longer available on its platform.

On 10/05/2022, a request is sent to the Irish Authority to seek assistance regarding the questions to be directed to the entity TIKTOK, specifically regarding the IP address that uploaded the video in question to the TIKTOK platform.

On 10/06/2022, the Irish Authority responds:

"Dear Colleagues,

Please find below contact details for TikTok:

***EMAIL.1

This email is only to be used by Supervisory Authorities and not to be passed on to complainants.

There is a separate portal that complainants can use to contact the DPO in TikTok. It is **URL.3.

I hope the above is of some assistance.

Kind regards,”

Its unofficial translation from English is:

“Dear colleagues,

Below you will find the contact details for TikTok:

***EMAIL.1

This email should only be used by supervisory authorities and should not be passed on to complainants. There is a separate portal that complainants can use to contact the DPO at TikTok. It is

***URL.3.

I hope the above is of some assistance.

Regards”

On 03/31/2023, it is verified that no video is published on the two previous urls. Upon consulting these urls, the text “This video is not currently available” is displayed.

On 03/31/2023, information is requested regarding the IP addresses from which the videos were uploaded to the TIKTOK platform at the two mentioned urls.

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The request is made through the Law Enforcement page of TIKTOK located at ***URL.4.

On 14/04/2023, an email was received from ***EMAIL.2 containing the following content:

“Please note we have carried out an investigation based on the information provided and our records indicate that there is no available data for user ***CUENTA.1.

TikTok is committed to assisting Law Enforcement. If you have any questions please respond to this message, or submit a new request via our Law Enforcement webform.

Regards,

TikTok Law Enforcement Response Team”

The unofficial translation from English is:

“Por favor tenga en cuenta que hemos llevado a cabo una investigación sobre la base de la información facilitada y nuestros registros indican que no hay datos disponibles para el usuario

***CUENTA.1.

TikTok se ha comprometido a ayudar a hacer cumplir la ley. Si tiene alguna pregunta, responda a este mensaje, o presente una nueva solicitud a través de nuestro formulario web de aplicación de la ley.

Saludos,

Equipo de respuesta a la aplicación de la ley de TIKTOK”

On 17/05/2023, an email was received from ***EMAIL.2 containing the following content:

“[...]

We consulted internally with the appropriate teams and reviewed the request in accordance with our internal policies and procedure. We can confirm that the relevant user account (***CUENTA.1) is located in Peru, which means that TikTok Technology Ireland Limited is not the relevant service provider. For users of the TikTok platform having their usual residence in Peru, the relevant TikTok entity and data controller is TikTok Pte. Limited (“TikTok Singapore”), a company incorporated under the laws of the Republic of Singapore.

[...]”

The unofficial translation from English is:

“[...]

Hemos consultado internamente con los equipos pertinentes y revisamos la solicitud de acuerdo con nuestras políticas y procedimientos internos. Podemos confirmar que la cuenta de usuario pertinente (***CUENTA.1) está situada en Perú, lo que significa que TikTok Technology Ireland Limited no es el proveedor de servicios pertinente. Para los usuarios de la plataforma TikTok con residencia habitual en Perú, la entidad TikTok y el responsable del tratamiento de datos pertinentes son TikTok Pte.

Limited («TikTok Singapore»), una empresa constituida con arreglo a la legislación de la República de Singapur.

[...]"

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On 18/05/2023, a request for information was sent to TikTok Pte. Limited, and this notification is currently in "in progress" status.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of Processing

Article 6 of the GDPR details in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

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f) the processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not prevail over the interests or the fundamental rights and freedoms of the data subject requiring the protection of personal data, particularly when the data subject is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

III

Conclusion

Following the investigations carried out by this Agency, it has not been possible to identify the person who uploaded the content; the account responsible for the publication of the content is an account located in Peru.

It should be noted that for users of the TikTok platform residing in Peru, the entity TikTok and the data controller are TikTok Pte. Limited (TikTok Singapore), a company incorporated under the laws of the Republic of Singapore.

Nevertheless, a request for information was sent to TikTok Singapore, to which no response has been received.

However, the content reported in this complaint has been removed.

Thus, as it has not been possible to attribute responsibility for the processing and in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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